TOWNSHIP OF LINCOLN
CLARE COUNTY
175 LAKE GEORGE AVE., P.O. BOX 239
LAKE GEORGE, MI 48633

phone: [989] 588-9841 website: www.lincolntwp.com

Lincoln Township Planning Commission

Sharon Bridges – Chair ***Phil Blaisdell*** – Vice Chair
Gary Szczepanski – Secretary ***Tami McCaslin*** – ZBA ex Officio
Mike Tobin – Township Board ex Officio

Dick Hassberger – Zoning Administrator ***Deb Trim –*** Ordinance Enforcement
Deb Sherrod – Recording Secretary

Regular Meeting – Tuesday, November 15, 2022, at 7:00 pm. Called to order at 7:00 pm by Chair Bridges.

Roll Call:
Present – Bridges, Blaisdell, McCaslin, Szczepanski, Tobin, Hassberger, Sherrod
Absent –Trim
Public – 5 in person

Public Hearing: Chair Bridges opened the public hearing for the purpose of considering rezoning from R1 to R2 the properties located in the southwest corner of Section 16. The properties are located on West Lake George Drive, Lincoln Township, Harrison, Michigan 48625, and include property numbers from 010-016-300-03 to 13, 010-298-001-00 to 023-00, 010-760-040-01, and 010-017-100-01 and 03.

Bridges explained the procedure of addressing the chair, stating name and address when making public comment.

Public Comment: None

Chair Bridges asked if Mr. Neill knows of how many neighbors are for or against this change. There was one email received that opposes this rezoning. Discussion followed concerning the individual properties which will be affected.

McCaslin spoke her concern about the lakeside lots that shouldn't be R1 to begin with. She also reiterated her feeling that rezoning for just the Neill property could be considered spot zoning. She proposes denying the Neill application to rezone only that property and then look at the whole area to be rezoned from R1 to R2.

Tobin revisited the idea that originally the zoning was done incorrectly and has always needed to be R2 instead of R1.

Blaisdell agreed that this needs to be corrected for all the properties.

Bridges moved to close the public hearing at 7:15 pm: Szczepanski seconded. Bridges then opened the regular Planning Commission meeting.

Approval of Minutes:
Approval of the regular meeting minutes of October 11, 2022. Blaisdell made a motion to approve the minutes as presented; McCaslin seconded. Motion passed.

Approval of Agenda: Accepted with no amendments.

Zoning Administrator's Report: See Attachment #1
There were several questions asked and answered as well as several comments.

Building Inspector's Report: See Attachment #3
No questions or comments.

Ordinance Enforcement Report: See Attachment #2
No questions or comments.

Public Comment: A White Birch board member brought and distributed a letter from the WB board concerning the R2 & R2-A recreation matter.

Old Business:

1. Continued Master Plan Review: Bridges recommended tabling this again until Tobin can get more information from Clerk Majewski.

1a. Decision on the Neill application to rezone a single property from R1 to R2: Blaisdell made a motion to deny the Neill claim to change the properties #010-016-300-04 and 010-016-300-11 from R1 to R2. Szczepanski seconded. Bridges asked for discussion. Bridges called for a roll call vote: Bridges: Yes; Szczepanski: Yes;

McCaslin: Yes; Tobin: Yes; Blaisdell: Yes. The motion passed to deny the Neill application.

Chair Bridges re-opened the public hearing on the issue of rezoning the prior mentioned properties from R1 to R2 and, hearing no more public comments, she closed the public hearing.

Szczepanski made a motion to recommend to the board that the properties on W. Lake George Dr. be changed from R1 to R2. Bridges called for a roll call vote.
Bridges: Yes; Szczepanski: Yes; McCaslin: Yes; Tobin: Yes; Blaisdell: Yes. The motion passed with all in favor.

The planning commission will write a letter to the township board with this recommendation. Mr. Neill will now need to re-apply to do a lot split if and when the board approves the rezoning.

2. Discussion of Pending Approved Ordinance Matters: McCaslin made a motion that the planning commission recommend to the township board to remove the designation wording R2-A from the zoning ordinance as it is no longer relevant. Szczepanski seconded.

Discussion opened: Bridges moved to table the motion until after the required public hearing. McCaslin seconded. Motion passed with all in favor.

New Business:
1. Blaisdell spoke about a group working on getting a ball field built in Lake George. He wanted to acknowledge all the work that they did in making this proposal. He feels that they are doing a good job in organizing not only this but other activities that they are starting.

2. ZA Hassberger brought up the trend of putting a tiny home on a trailer and how the ordinance needs to address this. He will work on a definition to add to the ordinance with the help of Bridges and Blaisdell.

Announcements: Next Regular Meeting will be Tuesday, December 13, at 7:00 pm.

Motion by Bridges to adjourn the meeting; seconded by McCaslin. Motion passed with all in favor. Meeting adjourned at 8:19 p.m.

Respectfully Submitted,

Gary Szczepanski, Secretary

Attachment #1

Zoning Department phone: [313] 530-2606 website: www.lincolntwp.com
e-mail: dickhassbergerl@aol.com

Zoning Administrator: ***Dick Hassberger***

Monthly Zoning Permit Report - October, 2022

Received & Approved

010-030-400-09	5144 Browns Rd	Remodel Existing Structure	22 10 001
010-540-045-00	872 Pine St	Fence	22 10 004
010-680-301-00	5076 Wolf Ln	Deck	22 10 006

Applications Denied

010-030-100-44 4221 S Hemlock New Residence
22 10 003
Currently there are 2 Existing non-conforming and 1 existing conforming structures on this lot

RV & Temp Storage on Vacant Lot - Approved

None

Pending

010-400-001-00	101 Maple St.	Zoning Violation – Fence ZBA Scheduled on 08-10-2022-Appeal Denied ZA working to find a compromise on advice of counsel
010-016-300-11 010-016-300-04	W. Lake George Dr	Petition for Zoning Map Change, R1 to R2 Public Hearing scheduled for 11-15-22

Violations

010-324-003-00	Lake Drive	No Zoning Permit-Deck	Letter-Work Halted-Ongoing
010-500-054-00	Lakewood Drive	No Seasonal RV Permit	Open
010-635-001-00	Maple Street	No Seasonal RV Permit 2 RVs Stored on Lot	Open Open until 12/01
010-100-013-00	Arbor Dr	No Zoning Permit-Deck	Pending Zoning Appl.-Stop Work in effect
010-120-004-00	E North St	Misc Ord; Violations	Multiple Visits-Ongoing
010-118-021-00	South St	RV Violations	Letter-Correcting

Attachment #2

Township of Lincoln

(*Clare County)* P.O. Box 239 Lake George, Michigan 48633-0239
phone: [989] 588-9841 ext. 1 website: www.lincolntwp.com e-mail: Ordinance103@gmail.com

October 2022 Ordinance Report

Debra Trim – Ordinance Enforcement Officer

Complaint 529 W Shingle Lk Dr Debris and scrap metal in yard, sent letter 4-15-22, spoke with owner 6-1-22, drove by 8-1-22 started clean up, spoke with owner again 8-20-22, Drove by 10-3-22 yard is cleaned up.
Resolved.

Complaint 2126 W Jefferson Rd Sent letter 4-30-22 returned as undeliverable. Spoke to owner 6-10-22 about car parts and scrap metal. 7-16-22 called requesting more time, gave 2 weeks. Drove by 8-14-22 started clean up spoke with owner. 10-3-22 drove by clean completed.
Resolved.

Complaint 1799 Cedar Dr Sent letter 5-7-22 for yard debris. Relative of owner called 5-26-22 will clean as owner very ill. 6-30-22 drove by start on yard but not complete. Left message with relative of owner and they returned call 7-29-22. 10-12-22 clean up completed.
Resolved.

Complaint 198 Lk George St Junk car ,sent letter 7-28-22 came back undeliverable 8-19-22. Spoke with renters 9-8-22. Drove by 10-9-22 vehicle taken care of.
Resolved.

Complaint 1795 S Jackson Damaged mobile home from fallen tree, open and debris spilling out on property. Sent letter 5-27-22, no response. Sent second letter 7-30-22, owner called asking for more time. 8-27-22 drove by clean up on property but home still there. Spoke with owner again 9-20-22, will remove mobile home. Drove by 10-12-22 mobile home removed.
Resolved.

Complaint 2272 W Jefferson Rd Yard full of tires, scrap metal and debris. Took pictures 10-17-22, sent letter 10-18-22.
On going.

Complaint 702 Pine St Several vehicles in disrepair in yard along with scraps of metal, wood debris in general. Took pictures 10-17-22, sent letter 10-18-22.
On going.

Attachment #3

Township of Lincoln

(*Clare County*) P.O. Box 239 Lake George, Michigan [989] 539-9841 website: www.lincolntwp.com
e-mail: bor@lincolntwp.com

Clare County Community Services -- Building Department [989] 539-2761 www.clareco-building.net

Permits Issued for October, 2022

(Permit Number)	(Parcel Number)	(Address)	(Brief Description)
PB22-00497	010-540-077-00	2270 Jefferson	New Roof
PB22-00500	010-323-006-00	1636 Lake Dr.	Windows, Doors, Roof, Siding
PB22-00517	010-746-274-00	4569 Red Fox Run	Demo for new Home
PB22-00522	010-009-100-08	1459 Jackson	New windows (6)
PB22-00534	010-460-023-00	412 W. Shingle Lake Dr.	New Windows (8)
PB22-00536	010-623-005-10	1172 Forest	New House with Deck
PB22-00544	010-022-200-05	3386 Finley Lake Ave.	Pole Barn
PE22-00544	010-016-400-25	2670 Devon Tr.	16p Solar Array & Service Circuits
PR22-00557	010-030-100-27	108 W. North	Meter & Breaker Box
PE22-00567	010-030-100-46	128 W. North	Generator & Circuits
PE22-00568	010-030-100-45	136 W. North	Generator & Circuits
PE22-00571	010-540-045-00	872 Pine	Heating, Lights & Circuits
PE22-00575	010-800-126-01	1472 Arbor	Service Upgrade, Lights & Circuits
PE22-00578	010-267-008-00	160 Lake Rd.	Service Upgrade
PM22-0268	010-631-004-00	1165 Birch	LP Fuel Tank & Piping
PM22-0270	010-008-204-22	22 W. Arthur	Water Heater & Vent
PM22-0275	010-700-552-00	1670 Ironwood Ct.	Woodstove & Chimney
PM22-0298	010-747-361-01	4821 Teaberry Ln.	New Furnace
PM22-0308	010-267-008-00	160 Lake Rd.	Generator & Fuel Line
PP22-0076	010-540-045-00	872 Pine	Remodel, Bldg. Drain, Fixtures